

EMPLOYMENT AGREEMENT

This Employment Agreement is executed on {{Day}} day of {{Month}}, {{Year}} at {{Location}}, India.

PIRNAV SOFTWARE SOLUTIONS PVT LTD, a company incorporated under the Companies Act, 2013, having its registered office at # 409, 4th Floor, Capital Park, Madhapur, Hyderabad, Telangana -500081., hereinafter referred to as the "Company".

Mr./Ms. {{EmployeeName}}, residing at {{Address}}, bearing PAN No. {{PanNumber}} and Aadhaar No. {{AadhaarNumber}}, hereinafter referred to as the "Employee". The Company and Employee are collectively referred to as the "Parties".

1. APPOINTMENT

The Company hereby appoints the Employee as {{Designation}} and the Employee accepts such appointment subject to the terms and conditions contained herein.

The Employee shall report to such manager or authority as designated by the Company.

2. DATE OF JOINING

The Employee shall commence employment on {{JoiningDate}}

3. PROBATION

The Employee shall remain on probation for a period of **six months** from the date of joining.

The Company may:

- Confirm employment;
- Extend probation; or
- Terminate employment based on performance and conduct.

4. DUTIES AND RESPONSIBILITIES

The Employee shall:

- Perform assigned duties honestly and diligently.
- Comply with all Company policies.
- Protect Company assets and confidential information.
- Maintain professional conduct.
- Meet project deadlines and quality standards.
- Follow client-specific requirements where applicable.

5. WORKING HOURS

- The minimum office working hours shall be from 9:00AM - 6:30PM with one hour meal break and the working days are Monday to Friday. However, due to the nature of the business working hours are flexible and the Employee shall be required to work necessary hours in order to complete his/her assigned work. We expect the work timings to overlap with US time to some extent.
- The Employee may be required to work beyond normal business hours when necessary for project delivery, support activities, client commitments, or business exigencies.

6. REMOTE WORK / HYBRID WORK

Where remote or hybrid work is permitted:

- Company assets shall be used only for official purposes.
- Employee shall maintain secure internet access.
- Confidential information shall not be accessed by unauthorized persons.
- Company reserves the right to monitor systems used for official work.

7. CONFIDENTIALITY

The Employee acknowledges that during employment they may receive confidential information including:

- Source code
- Software architecture
- Trade secrets
- Product road maps
- Financial data
- Customer information
- Pricing information
- Business strategies
- Vendor information

The Employee shall not disclose, copy, transmit, publish, or use confidential information except for official Company purposes.

This obligation shall survive termination of employment indefinitely.

8. INTELLECTUAL PROPERTY RIGHTS

- All inventions, software code, developments, discoveries, designs, algorithms, documentation, reports, databases, and other intellectual property created during employment shall exclusively belong to the Company.
- The Employee irrevocably assigns all rights, title, and interest in such intellectual property to the Company.
- The Employee agrees to execute any documents required to perfect such ownership.

9. DATA PROTECTION & INFORMATION SECURITY

The Employee shall:

- Comply with Company Information Security Policies.
- Protect passwords and access credentials.
- Not install unauthorized software.
- Follow cybersecurity requirements.
- Report security incidents immediately.
- Violation may result in disciplinary action, including termination.

10. NON-SOLICITATION

During employment and for a period of six months after cessation of employment, the Employee shall not directly or indirectly:

- Solicit Company employees;
- Solicit Company clients;
- Solicit Company vendors;
- Induce any employee to leave the Company.

11. BACKGROUND VERIFICATION

Employment is subject to satisfactory verification of:

- Educational qualifications
- Previous employment
- Identity documents
- Criminal records (where permissible by law)
- Any misrepresentation may result in immediate termination.

12. LEAVE

Leave entitlement shall be governed by Company policy and applicable laws. Unauthorized absence for more than seven (7) consecutive working days may be treated as abandonment of employment.

13. CODE OF CONDUCT

The Employee shall:

- Maintain ethical conduct.
- Avoid conflicts of interest.
- Comply with anti-harassment policies.
- Follow workplace discipline.
- Respect Company property and resources.

14. NOTICE PERIOD

After confirmation, either party may terminate employment by providing **30 days written notice** or payment in lieu thereof, subject to Company approval. The Company may waive all or part of the notice period at its discretion.

15. TERMINATION FOR CAUSE

The Company may terminate this engagement, with immediate effect, for unsatisfactory performance, absenteeism, misconduct, breach of confidentiality, non-compliance with directives, or any reason which in the Company's opinion warrants such action. The management, at its sole discretion, may also terminate services without prior notice under the following specific conditions:

- **Insubordination and Indiscipline:** Failure to comply with reasonable instructions from superiors or acts of defiance disrupting workflow.
- **Dishonesty and Negligence of Duty:** Fraudulent behaviour, dishonesty, or gross negligence affecting the Company's interests.
- **Misconduct:** Harassment, unprofessional behaviour, or creating a hostile work environment.
- **Theft or Misappropriation:** Unauthorized use or theft of Company property, equipment, data, or funds.
- **Leakage of Confidential Information:** Unauthorized disclosure or misuse of sensitive information.
- **Bad-Mouthing the Organization:** Spreading false or defamatory information about the Company.
- **Threatening or Abusing Colleagues/Superiors:** Aggressive or abusive behaviour towards colleagues, managers, or clients.
- **Possession of Illegal Substances or Weapons:** Possession of drugs, alcohol, firearms, or prohibited items on Company premises.
- **Sleeping While on Duty:** Lack of attentiveness or sleeping during work hours.
- **Habitual Tardiness or Regular Absenteeism:** Consistently arriving late or displaying a pattern of unexplained absences.

- **Unauthorized Leaves:** Any leave taken without prior approval will be treated as unauthorized.
 - a) For each unauthorized leave, two (2) days of salary will be deducted.
 - b) Repeated unauthorized leaves may result in termination.
- **Failure to Attend or Refusal of Client Calls:** Employees must attend all scheduled client calls, review meetings, or discussions.
 - a) A single unapproved refusal or absence may result in a warning.
 - b) Repeated refusal or intentional failure to attend such calls may lead to immediate termination.
- **The POSCH ACT 2013:** Any Employee found engaging in inappropriate behaviour, harassment or misconduct towards any woman at the workplace shall be subject to disciplinary action in accordance to the company policy.
- **Other Acts of Misconduct:** Any other behaviour deemed detrimental to the Company's interests.

The Candidate may also terminate this engagement with seven (7) days' prior written notice. However, such termination shall not prejudice the Company's right to recover amounts due under the liquidated damages clause or damages caused by breach of this Agreement.

16. The Company may terminate this engagement, with immediate effect, for unsatisfactory performance, absenteeism, misconduct, breach of confidentiality, non-compliance with directives, or any reason which in the Company's opinion warrants such action.

16.(I) The Candidate may seek to terminate with seven (7) days' prior written notice; however, such termination shall not prejudice the Company's right to recover amounts due under Clause 8 and/or any damages caused by the Candidate's breach.

17. RETURN OF COMPANY PROPERTY

Upon termination or resignation, the Employee shall return all Company property including:

- Laptop
- Mobile devices
- ID card
- Access cards
- Software licenses
- Documents
- Storage devices
- Confidential records

Final settlement may be withheld until return of Company property.

18. STATUTORY COMPLIANCE

The Company shall comply with applicable Indian laws including:

- The Companies Act, 2013
- Telangana Shops and Establishments Act, 1988
- The Payment of Wages Act, 1936
- The Payment of Bonus Act, 1965
- Employees' Provident Funds and Miscellaneous Provisions Act, 1952
- Employees' State Insurance Act, 1948
- The Professional Tax, 1975
- Income Tax Act, 1961
- Applicable Labour Laws

19. DISPUTE RESOLUTION

Any dispute arising under this Agreement shall first be resolved amicably. Failing such resolution, disputes shall be referred to arbitration under the Arbitration and Conciliation Act, 1996. The seat of arbitration shall be Hyderabad (Telangana). Proceedings shall be conducted in Telugu/English.

20. GOVERNING LAW

This Agreement shall be governed by the laws of India. Courts at Hyderabad shall have exclusive jurisdiction.

21. ENTIRE AGREEMENT

This Agreement constitutes the complete understanding between the Parties and supersedes all previous communications, representations, and agreements.

SIGNATURE FOR THE COMPANY

Authorized Signatory: B.P.Pradeep

Kumar Designation: Managing Director

Signature:

B.P. Kumar



Company Seal:

EMPLOYEE

Name: {{EmployeeName}}

Employee Id : {{EmployeeId}}

Signature: {{Signature}}

Date: {{SignedDate}}

Place:{{Location}}

Note: Please read the agreement carefully before proceeding. Your typed e-signature and uploaded signature image will serve as your official acknowledgment and acceptance of all terms and conditions.